

[doc. web n. 9920881]  
Provision of July 6, 2023  
Register of Provisions  
n. 293 of July 6, 2023

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by  
Prof. Pasquale Stanzione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia and Attorney Guido Scorza, Members, and  
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament  
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code on  
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of  
August 10, 2018, containing "Provisions for the adaptation of  
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report of the Guardia di Finanza – Special Unit for Privacy Protection and  
Technological Fraud,  
transmitted by note dated October 14, 2022, which reports  
on a control carried out on September 29, 2022, and October 6, 2022,  
at Ristorante Francesco s.r.l., located in  
Genga (AN), Fraz. di San Vittore n. 2/A, which confirmed the presence of  
operational video surveillance cameras lacking the appropriate  
informative signs, the guarantees provided  
for in Article 4 of Law 300/1970 referred to in Article 114  
of the Code, and capable of capturing the public road;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary  
General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

## WHEREAS

1. The report received and the initiation of the  
proceeding.

By note dated October 14, 2022, the Guardia di Finanza – Special Unit for Privacy Protection and  
Technological Fraud  
transmitted to the Guarantor the report of the control  
carried out on September 29, 2022, and October 6, 2022, by the Guardia  
di Finanza of Fabriano, at Ristorante  
Francesco s.r.l. (hereinafter, the Company) located in  
Genga (AN), Fraz. di San Vittore n. 2/A.

The report indicated the presence of a  
video surveillance system consisting of 7 operational cameras,  
of which "2 frame the upper entrance facing the parking lot, 2 frame  
the lower entrance on the public road, 2 are located  
inside the restaurant, and one camera frames the rear of the restaurant."  
The report confirmed that, regarding the  
cameras positioned outside aimed at the  
public road, there was no sign informing passersby of any processing carried out

against them as required by Article 13 of the Regulation.

Furthermore, from the photographic documentation attached to the report, it was noted that the cameras were capable of capturing large areas of the public road adjacent to the commercial establishment.

As for compliance with the guarantees provided for the protection of the personnel employed at the establishment, it was confirmed that, as also represented by the Company, no authorization had been requested for the installation of the system from the Labor Inspectorate.

Therefore, the Office proceeded to notify the act of initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letter a) and 13, 88 of the Regulation and 114 of the Code (prot. n. 27785 of February 15, 2023).

By note dated March 17, 2023, the Company sent defensive writings stating that it had displayed, prior to the control, an informative sign at the beginning of the pedestrian path that runs along the perimeter wall leading to the private parking of the commercial establishment, "that there was no intention to carry out video recordings of the transit on the Municipal Road" and that having informed the employees in advance of the presence of the cameras, "it was not considered necessary to request authorization from the Labor Inspectorate." The party also stated that, following the inspection control, "it immediately ceased the audiovisual recording and took steps to regularize its position and as soon as it became aware of the regulations, the sign was immediately posted and the necessary authorization was requested from the Labor Inspectorate." It also represented that "the activities carried out consisted of the installation of multiple informative signs at the various entrances of the company, before the field of view of the cameras, complete with the data of the data controller and other legal elements.

Furthermore, the cameras located on the side adjacent to the Municipal road were repositioned (orienting) the field of view exclusively inside the company, excluding the road at the boundary." Regarding the recording of workplaces, on October 25, 2022, the company submitted a request for authorization to the Labor Inspectorate and on October 31, 2022, the Territorial Directorate of Ancona issued the relevant authorization; currently, only the internal cameras have been reactivated, after fulfilling the legal requirements, while the video surveillance system installed inside the premises where employees work "although authorized, has not yet been activated."

2. The legal framework of the processing carried out  
The use of video surveillance systems can

determine, in relation to the positioning of the cameras and the quality of the images captured, a

**\*\*Processing of Personal Data.\*\*** Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency, which presupposes that “data subjects must always be informed that they are about to enter a video-surveillance area.”

For this purpose, the data controller must place appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this regard, see also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level). The guidelines also provide that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must be adapted to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

Furthermore, based on the provisions of the general provision on video surveillance of April 8, 2010, in the case of recording external areas of buildings and properties, the processing must occur “in such a way as to limit the field of view to the area actually to be protected, avoiding the recording of surrounding places and irrelevant details (streets, buildings, commercial establishments, institutions, etc.)” (see, in particular, point 6.2.2.1 of the provision). Similarly, the aforementioned Guidelines No. 3/2019 state that, “in general, the need to use video surveillance to protect the premises of the Controller ends at the boundaries of the property; however, for effective protection, in some cases it may be necessary to extend video surveillance to the immediate vicinity of the premises. In this context, the Controller should consider physical and technical means, such as blocking or pixelating irrelevant areas” (3.1.2 par. 27).

The processing of personal data carried out within the employment relationship, if necessary for the purpose of managing the relationship itself (see Articles 6, paragraph 1, letter c); 9, paragraph 2, letter b) of the Regulation), must take place in compliance with the general principles indicated by Article 5 of the Regulation, and in particular the principle of lawfulness, according to which processing is lawful if it complies with the applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation).

Consistent with this approach, Article 88 of the Regulation has preserved national provisions of greater protection (“more specific rules”) aimed at ensuring the protection of the rights and freedoms regarding the processing of personal data of workers. The national legislator has approved, as a more specific provision, Article 114 of the Code, which among the conditions for the lawfulness of processing has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The violation of Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation.

According to the referenced Article 4, Law No. 300 of 1970, video surveillance systems, if they also allow “remote control” of employees' activities, “may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets,” and their installation must, in any case, be carried out following the conclusion of a collective agreement with the unitary trade union representation or with the company trade union representatives or, if it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization by the Labor Inspectorate.

The activation and conclusion of this guarantee procedure is therefore an indispensable condition for

the installation of video surveillance systems. The violation of this provision is subject to criminal penalties (see Article 171 of the Code). The processing of personal data carried out by the company through the video surveillance system is, therefore, unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation and Article 114 of the Code.

**\*\*3.** The outcome of the investigation and the sanctioning procedure. **\*\*** Based on the findings made by the Financial Police, it emerged that: the video surveillance system installed at the Company's headquarters located in Genga (AN), Fraz. di San Vittore No. 2/A, consists of active and functioning cameras; the signs containing the information referred to in Article 13 of the Regulation had not been placed; and finally, the guarantee measures provided for by Article 4 of Law No. 300/1970, referenced by Article 114 of the Regulation, had not been adopted.

**\*\*Code**, in relation to the presence of employees in the video-surveilled premises. It has also been established that the cameras are capable of capturing the public road, well beyond what is necessary to ensure effective protection of the Company's premises. **\*\***

In this specific case, it is therefore proven that:

1. The party has carried out processing of personal data through a video surveillance system, in the absence of the required information notice. This conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is obliged to provide the data subject with all information regarding the essential characteristics of the processing;
2. Since the cameras installed by the Company are capable of capturing a significant portion of the public road (as also confirmed by the party during the inspection), the party has violated general principles set forth in Article 5, paragraph 1, letter a) of the Regulation;
3. The installation of the video surveillance system had not been previously authorized by the Labor Inspectorate, resulting in the processing being carried out in violation of Article 114 of the Code regarding the protection of personal data.

**\*\*4.** Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. **\*\***

The processing of personal data carried out by the Company is therefore unlawful, as outlined above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency), 13 (information) of the Regulation and Article 114 of the Code regarding the protection of personal data.

The violation established in the terms set forth in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

Considering that the party, in its defense submissions, stated that it had posted appropriate informational signs, modified the angle of the cameras to capture only areas of exclusive relevance, and obtained authorization for the installation of the system from the Territorial Directorate of Ancona, proving its statements with appropriate documentation, it is not deemed necessary to adopt specific prescriptions.

**\*\*5.** Injunction Order. **\*\***

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, as outlined above, in relation to Articles 5, paragraph 1, letter a), 13 of the Regulation and Article 114 of the Code.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken

into account:

- Regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility connected to the failure to fulfill the obligation to provide information to the data subjects, and to implement the guarantee procedure provided for by Article 114 of the Code;
- The absence of specific previous violations by the company relating to breaches of the data protection regulations;
- The circumstance that the company cooperated with the Authority during the proceedings, demonstrating that it fulfilled its legal obligations, modifying the angle of the cameras, providing appropriate informational signs, and complying with the guarantee procedures provided for by Law 300/1970 (so-called Workers' Statute).

It is also considered that the economic conditions of the offender, determined with reference to the income declaration for the year 2023, are relevant in this specific case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €5,000.00 (five thousand) for the violation of Articles 5 and 13 of the Regulation and Article 114 of the Code.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

**\*\*ALL OF THE ABOVE HAVING BEEN STATED, THE Garante declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing.\*\***  
carried out by the company Ristorante Francesco s.r.l. through the use of the surveillance system installed at its premises in the terms stated in the reasoning, for the violation of Articles 5, 13 of the Regulation and 114 of the Code;

## ORDERS

the company Ristorante Francesco s.r.l., VAT No. 02704700422, based in Genga (AN), Fraz. di San Vittore n. 2/A, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

## COMMANDS

therefore the same Ristorante Francesco s.r.l. to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

## DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, it is possible to appeal against this provision before the ordinary judicial

authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei